

BEFORE THE IOWA BOARD OF
SOCIAL WORK EXAMINERS

IN THE MATTER OF:	)	CASE NUMBER: 06-044
	)	
MELISSA A. DAVIS,	)	SETTLEMENT AGREEMENT
	)	AND FINAL ORDER
Respondent.	)	

COME NOW the Iowa Board of Social Work ("Board") and Melissa A. Davis ("Respondent"), and pursuant to Iowa Code sections 17A.10 and 272C.3(4), enter into the following Settlement Agreement and Final Order of the contested case currently on file against the Respondent:

1. The Board originally licensed Respondent to practice as a social worker in the state of Iowa on November 12, 1996, and Respondent holds license number 304 01499.
2. The Board filed a Notice of Hearing and Statement of Charges against the Respondent on May 12, 2008. A contested case hearing in this matter was scheduled for October 6, 2008, and was continued pending further order of the Board at the request of both parties.
3. The Board has jurisdiction over the parties and subject matter of the Notice of Hearing and Statement of Charges.
4. Execution of this Settlement Agreement and Final Order constitutes the resolution of this contested case. Respondent has a right to a hearing on the charges, but waives Respondent's right to hearing and all attendant rights, including the right to appeal, by freely and voluntarily agreeing to this Settlement Agreement and Final

Order. Once entered, this Order shall have the force and effect of a disciplinary order entered following contested case hearing.

5. Respondent is freely and voluntarily entering into this Settlement Agreement and Final Order. Respondent does not admit the allegations contained in the Notice of Hearing and Statement of Charges and enters into this Settlement Agreement and Final Order for the sole purpose of resolving this matter to avoid the burden, expense, delay, and uncertainties of a contested case hearing.

6. Respondent agrees that the State's counsel may present this agreement to the Board and may have ex parte communication with the Board while presenting it. This agreement is subject to approval of the Board. If the Board approves this agreement, it becomes the final disposition of this matter. If the Board fails to approve this agreement, it shall be of no force or effect to either party.

7. This agreement shall be part of the Respondent's permanent record and shall be considered by the Board in determining the nature and severity of any disciplinary action to be imposed in the event of any future violations.

8. In the event Respondent violates or fails to comply with any of the terms of this Settlement Agreement and Final Order, the Board may initiate appropriate action to revoke or suspend Respondent's license or to impose other licensee discipline in accordance with Iowa Code section 272C.3(2)(a).

9. This Settlement Agreement and Final Order is a public record available for inspection and copying in accordance with the requirements of Iowa Code chapters 22 and 272C. The Notice of Hearing and Statement of Charges is also a public record available for inspection and copying in accordance with the requirements of Iowa Code

chapters 17A, 22 and 272C.

10. The Board's approval of this Settlement Agreement and Final Order shall constitute a FINAL ORDER of the Board.

IT IS THEREFORE ORDERED:

11. Respondent's license shall be placed on probation for a period of one (1) year, effective November 25, 2008, to November 25, 2009, subject to the following terms and conditions:

a. Respondent shall remit to the Board a civil penalty in the amount of five hundred dollars (\$ 500.00) made payable to the Treasurer, State of Iowa, within ninety (90) days of the date of this agreement.

b. Respondent shall maintain sufficient and timely records which accurately reflect the client's contact with Respondent and the services provided. Respondent shall maintain records which include subjective and objective data, assessment or diagnosis, a treatment plan, and any revisions to the assessment, diagnosis, or plan made during the course of treatment. All case notes shall be legibly written or typed.

c. Respondent shall, within thirty (30) days of the date of obtaining employment in the field of social work, submit a written plan for supervision to the Board for its approval. The plan shall include the names and curriculum vitae of two proposed supervisors. The proposed supervisors shall be licensed independent social workers, one of whom will be selected by the Board to serve as a practice supervisor for Respondent. The approved supervisor will be provided a copy of the Notice of Hearing and Statement of Charges, the investigative file, and this agreement. The plan of supervision shall include a plan for the practice supervisor to review a random

selection of Respondent's appointment records, billing records, and client case records to ensure that Respondent is complying with paragraph 12(b) of this agreement. The supervisor shall provide quarterly written reports to the Board indicating the Respondent's compliance or lack of compliance. All costs associated with the supervision shall be the responsibility of Respondent.

d. Periods of time within which Respondent is not practicing social work shall not apply to the duration of the probation.

e. Respondent shall attend ten (10) hours of continuing education in the area of record keeping and ten (10) hours of continuing education in the area of ethics within the period of probation. Such hours shall be in addition to the standard continuing education renewal requirements. Prior to attending the continuing education, the Respondent shall submit the name of the course(s), the course instructors, and the course content to the Board for its approval.

f. Respondent shall make a personal appearance before the Board upon request. The Respondent shall be given reasonable notice of the date, time, and place for appearance.

g. Respondent shall obey all federal, state, and local statutes and regulations governing the practice of social work.

h. Respondent shall notify the Board of any change in address within one week of said change.

i. Upon full compliance with the terms and conditions for probation set forth in this Settlement Agreement and Final Order, the Respondent's probation shall be terminated.

12. In the event the Respondent violates or fails to comply with any of the terms or provisions of this Settlement Agreement and Final Order, the Board may initiate appropriate action to revoke or suspend the Respondent's license or to impose other licensee discipline as authorized by Iowa Code section 272C.3(2)(a).

This settlement agreement and final order is approved by the board on November 25, 2008.